

The Competition Commission Of India (Director-General) Recruitment Rules, 2009

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The Competition Commission Of India (Director-General) Recruitment Rules, 2009

Rule THE-COMPETITION-COMMISSION-OF-INDIA-DIRECTOR-GENERAL-RECRUITMENT-RULES-2009 of 2009

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The Competition Commission Of India (Director-General) Recruitment Rules, 2009

Published vide G.S.R. 563(E), dated 4.8.2009, published in the Gazette of India, Extraordinary, Part II, Section 3(i), Sl. No. 441, dated 4.8.2009.

399.

In exercise of the powers conferred by clause (f) of sub-section (2) of section 63 read with sub-section (4) of section 16 of the Competition Act, 2002 (

12 of 2003

), the Central Government hereby makes the following rules, namely:--

1.

Short title and commencement .-(1) These rules may be called the Competition Commission of India (Director-General) Recruitment Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Number of posts, classification and pay band with grade pay or pay scale .-The number of posts, their classification and the pay band with grade pay or pay scale attached thereto shall be as specified in columns (2) to (4) of the Schedule, annexed to these rules.

3.

Method of recruitment, eligibility, etc .-The method of recruitment, eligibility and other matters relating thereto shall be as specified in columns (5) to (14) of the said Schedule.

4.

Disqualification .-No person,--

(a)

who has entered into or contracted a marriage with a person having a spouse living, or

(b)

who, having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment to the said post:

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

5.

Power to relax .-Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

Schedule

Name of Post

Number of Posts

Classification

Pay band with grade pay or pay scale

Whether selection post or non-selection post

Whether benefit of added years of service is admissible under CCS (Pension) Rules

Age limit for direct recruits

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Director-General

(DG)

1(one)

Not applicable

Pay band Rs. 37,400-67,000 + Grade pay Rs.10,000 or pay scale Rs.67,000 (annual increment @ 3%) -Rs.79,000

Selection

No

Not applicable

Education and other qualification required for direct recruitment

Whether age and educational qualifications prescribed for direct recruits will apply in the case of promotees

Period of probation, if any

(8)

(9)

(10)

Not applicable

Not applicable

Two years

Method of recruitment: Whether by direct recruitment or by promotion and percentage of the vacancies to be filled by various methods

In case of recruitment by promotion/deputation/transfer, or grades from which promotion/deputation/transfer to be made

(11)

(12)

(13)

(14)

By deputation

For pay band Rs. 37,400-67,000 +

Grade pay Rs. 1,000

Not applicable

Not applicable

(1) Officers of the Central Government or State Government holding

However, selection for the post of DG shall be made through the search-cum-selection Committee consisting of -

(a) analogous posts in Central Government/State Government on regular basis; or

(a) Secretary, Ministry of Corporate Affairs

- Chairman

(b) Post in Central/State Government with two years regular service in the pay band of Rs.

37,400-67,000 with grade pay of Rs.8,900 or equivalent;

(b) Chairperson, Competition Commission of India or Member of the Commission nominated by him

- Member

(c) Post in Central/State Government with three years regular service in the pay band of Rs.

37,400-67,000 with grade pay of Rs.8,700 or equivalent; or

(c) Expert-person of eminence nominated by the Central Government.

-Member

For pay scale Rs.67,000-(annual increment @3%) - Rs.79,000

(1) Officers of the Central Government or State Government holding

(a) analogous posts in Central Government /State Government on regular basis, or

(b) Post in Central/State Government with three years regular service in the pay band of Rs.

37,400-67,000 with grade pay of Rs. 10,000 or equivalent.

Persons to be considered for appointment should be persons of integrity and outstanding ability and who have experience in investigation, and knowledge of accountancy, management, business, public administration, international trade, law or economics.

If a Departmental Promotion Committee exists, what is its composition

Circumstances in which Union Public Service Commission is to be consulted in making recruitment

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